

26STCV04503 26STCV04503

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Case Number: 26STCV04503 Hearing Date: June 26, 2026 Dept: 529

26STCV04503

Moving

Party: Defendants Dave &

Buster's Management, LLC, Dave & Buster's of California, Inc. and Dave
& Buster's, Inc.

Responding

Party: Plaintiff

Christian Singer

BACKGROUND

On February 10, 2026, Plaintiff Christian Singer, individually and on behalf of other aggrieved employees pursuant to the California Private Attorneys General Act filed a complaint against Dave & Buster's Management, LLC, Dave & Buster's of California, Inc., and Dave & Buster's Inc. for enforcement under the Private Attorney General Act, California Labor Code §2698, et seq.

[TENTATIVE]

RULING

Defendant Dave & Buster's Management, LLC, Dave & Buster's of California, Inc., and Dave & Buster's Inc.'s Motion to Compel Arbitration and Stay Proceedings is GRANTED.

EVIDENTIARY

OBJECTIONS

Defendant Dave & Buster's Management, LLC, Dave & Buster's of California, Inc., and Dave & Buster's Inc. submits objections to the declaration of Christian Singer.

The court OVERRULES objections nos. 1 – 7.

DISCUSSION

Defendant Dave & Buster's Management, LLC, Dave & Buster's of California, Inc., and Dave & Buster's Inc. move for an order compelling Plaintiff Christian Singer to arbitrate all individual claims on the grounds that all employment-related disputes involving Plaintiff against Defendants are subject to a valid and enforceable arbitration agreement that requires Plaintiff to resolve all individual claims, including his individual PAGA claims, through arbitration and not in civil court.

Parties may be compelled to arbitrate a dispute upon the court finding that: (1) there was a valid agreement to arbitrate between the parties; and (2) said agreement covers the controversy or controversies in the parties' dispute. (CCP §1281.2; *Omar v. Ralphs Grocery Co.* (2004) 118 Cal.App.4th 955, 961.) Because the right to arbitration depends upon contract, the party seeking arbitration bears the initial burden of proving that the parties actually agreed to arbitrate the instant dispute. (*Hotels Nevada v. L.A. Pacific Center, Inc.* (2006) 144 Cal.App.4th 754, 761.) If the moving party does so, the burden shifts to the opposing party to show that the subject agreement is unenforceable. (*Id.* at 761.) The court "sits as a trier of fact, weighing all the affidavits, declarations, and other documentary evidence, as well as oral testimony received at the court's discretion, to reach a final determination." (*Engalla v. Permanente Med. Grp., Inc.* (1997) 15 Cal.4th 951, 972.)

Defendants argue Plaintiff brings this representative action for penalties under the PAGA despite entering into a binding arbitration agreement with Dave & Buster's Management, LLC ("D&B") agreeing to submit all claims, including any individual PAGA claims, to arbitration on an individual basis. As part of the application process, there was an arbitration agreement for Plaintiff to review and complete. Plaintiff electronically signed his arbitration agreement through the ATP system on March 8, 2023. (Walters Decl.,

Exh. C.) The Agreement provides:

All disputes covered by this

Agreement between me and the Company shall be decided by a single arbitrator through arbitration and not by way of court or jury trial. The Company and I expressly agree that this Agreement shall be construed, interpreted and its validity and enforceability determined, in accordance with the Federal Arbitration Act (9 U.S.C. § 1, et seq.).

*** 1. COVERED DISPUTES. . . . the

Company and I mutually understand, contract and agree to the resolution by arbitration of claims arising out of or related to my application for employment, employment, and/or the termination of my employment, that the Company may have against me or that I may have against the Company, and/or any of its . . . officers, directors, employees, or agents . . . and/or . . . successors and assigns of any of them (all of whom may enforce this Agreement as a direct or third-party beneficiary).

Except as it otherwise provides,

this Agreement is intended to apply to the resolution of disputes that otherwise would be resolved in a court of law or before a forum other than arbitration. This Agreement requires all such disputes to be resolved only by a single arbitrator through final and binding arbitration. . . .

Except for claims excluded in the

section of this Agreement entitled "Disputes Not Covered by this Agreement" below, this Agreement also applies, without limitation, to disputes arising out of or in connection with the employment relationship

The Agreement also expressly requires Plaintiff to submit his individual PAGA claims to arbitration, as follows:

PRIVATE ATTORNEYS GENERAL ACT

("PAGA") INDIVIDUAL ACTION REQUIREMENT. YOU AND THE COMPANY AGREE TO ARBITRATE PAGA CLAIMS ON AN INDIVIDUAL BASES ONLY. THEREFORE, ANY CLAIM BY YOU UNDER PAGA TO RECOVER YOUR UNPAID WAGES OR OTHER INDIVIDUAL RELIEF MUST BE ARBITRATED UNDER THIS AGREEMENT. (Exh. C, p. 3 §5.)

The Agreement also includes a "delegation clause". (See Exh. C, p. 1 -2 §1.) Based on all these provisions, Defendants the Agreement broadly

provides that it applies to all claims between Plaintiff, D&B, and any related entities and the arbitrator has the exclusive authority to “resolve any dispute relating to the interpretation, applicability, enforceability, formation, or waiver of this Agreement including, but not limited to any claim that all or any part of this Agreement is void or voidable.”

In opposition, Plaintiff argues there is no valid arbitration agreement as the electronic signature cannot be authenticated and Plaintiff disputes that the arbitration agreement was presented to him during the onboarding process. Moreover, plaintiff contends the agreement is a contract of adhesion and is unconscionable. Specifically, the arbitration agreement must be accepted on a take-it-or-leave-it basis; the arbitration agreement attempts to limit discovery in this fact-intensive PAGA action; and contains an unlawful fee-shifting provision that allows the Arbitrator to award attorney's fees and costs to the employer in a PAGA action.

Here, the court finds Defendant has established the existence of an arbitration agreement. A proponent of an arbitration agreement that is electronically signed must “present sufficient evidence to support a finding that the electronic signature on the . . . agreement was the act of” the other party. (Ruiz v. Moss Bros. Auto Group, Inc. (2014) 232 Cal. App. 4th 836, 842.) “An electronic record or electronic signature is attributable to a person if it was the act of the person. The act of the person may be shown in any manner, including the showing of the efficacy of any security procedure applied to determine the person to which the electronic record or electronic signature was attributable.” (Civ. Code § 1633.9(a).)

To verify an electronic signature, there must be “evidence about the process used to verify [the signer's] electronic signature . . . including who sent [the signer] the Contract, how the Contract was sent to [the signer], how [the signer's] electronic signature was placed on the Contract, who received the signed [] Contract, how the signed Contract was returned to [the moving party], and how [the signer's] identification was verified as the person who actually signed the Contract.” (Fabian v. Renovate America, Inc. (2019) 42 Cal. App. 5th 1062, 1069.) Details about transmission and use of unique login credentials and the steps an electronic signer must take to affix his or her electronic signature suffice to properly authenticate a digitally signed document. (See Espejo v.

Southern California Permanente Medical Group (2016) 246 Cal. App. 4th 1047, 1062.)

Here, Defendants have satisfied by affidavit testimony the requirements of Ruiz, Fabian, and Espejo. Ms. Walters, the Senior Director of Total Rewards, testifies from during the relevant time period, D&B used an Administrative Transformation Program ("ATP") on IBM Kenexa ("Kenexa"), a third-party application and onboarding management platform. (Walters Decl. ¶8.) Candidates applying for a job at D&B were required to visit the Kenexa Brassring portal online and either: (a) click the option to create a personal account by providing their name, address, phone number, and an email address, and setting up a password; (b) log in with a personal account they previously created by providing the same information and entering their password; or (c) apply without creating an account by providing certain personal information including their name, phone number, and email address. (Walters Decl. ¶9.) To extend an employment offer to a candidate, D&B created an offer in the ATP system, which generated an offer letter that was sent to the email address provided by the candidate on the Brassring portal. (Walters Decl. ¶10.) If a candidate stated an intent to accept an offer letter, D&B moved them along in the ATP system, which generated an email to the address the candidate provided when applying for the position. (Walters Decl. ¶11.) The email included an invitation to complete onboarding paperwork on the Kenexa Onboard portal. (Walters Decl. ¶11.) To complete onboarding paperwork necessary before reporting to work, the candidate was required to create a personal profile, including creating a password. (Walters Decl. ¶11.) The candidate could create a personal signature by moving their computer mouse, and after creating a signature, click to approve it. (Walters Decl. ¶11.) A candidate who created a profile on the Onboard portal was then provided with onboarding paperwork directly on the Onboard portal, including the Arbitration Agreement. (Walters Decl. ¶12.) The documents were presented sequentially, so that a candidate must complete one before going to the next, and they could not be moved along to the HRIS system, including payroll, unless all onboarding documents were completed. (Walters Decl. ¶12.) There was no restriction limiting the time a candidate could review the Arbitration Agreement. (Walters Decl. ¶13.) Once the candidate reviewed the Arbitration Agreement, the candidate was directed to click on a box to upload their signature to be applied to the Arbitration Agreement if they had already created one, or to draw their signature using their mouse if they had not created one. (Walters Decl. ¶14.) Once the onboarding documents, including the Arbitration Agreement, were completed by a candidate, they were stored within Kenexa. (Walters Decl.

¶16.) An email communication to complete D&B's onboarding paperwork was sent to Plaintiff through ATP on March 7, 2023, to , which was the personal email address that Plaintiff provided to D&B. (Walters Decl. ¶18.) Ms. Walters attaches a screenshot on the ATP System confirming that, as part of the onboarding paperwork process, Plaintiff completed the initial task of providing D&B with certain personal information and confirming that Plaintiff completed all onboarding paperwork as of March 8, 2023. (Walters Decl. ¶¶19-20, Exhs. A, B.)

This testimony overcomes Plaintiff's contention he does not recall seeing any arbitration agreement during the onboarding process and the signature does not look like his. (See *Craig v. Brown & Root, Inc.* (2000) 84 Cal.App.4th 416.) As for Plaintiff's other contentions, the court agrees with Defendant that there is no requirement for anyone to be physically present to verify Plaintiff's electronic signature and D&B had already set forth in detail the security procedure applied. In Defendant's supplemental declaration, Ms. Walters' also attaches the missing screenshot of the ATP system showing the acknowledgment of the Agreement.

Next, regarding Plaintiff's contention that the Arbitration Agreement is a contract of adhesion, the mere fact that an employment agreement was presented on a take-it-or-leave-it basis, thus making it a contract of adhesion, indicates the presence of only some procedural unconscionability. (See *Baltazar v. Forever 21, Inc.* (2016) 62 Cal.4th 1237, 1245.) Moreover, the court finds Plaintiff's contention that the Arbitration Agreement is unconscionable because it provides for limited discovery does not make the Arbitration Agreement here unconscionable. The discovery provision here provides: "Each party shall have the right to take the deposition of two individual fact witnesses and any expert witness designated by another party. Each party also shall have the right to propound one (1) set of written interrogatories (not to exceed ten (10)) and one (1) set of requests for production of documents (not to exceed twenty-five (25)) to any party. Additional discovery may be had by mutual agreement of the parties or where the Arbitrator selected so orders pursuant to a request by either party. Each party shall have the right to subpoena witnesses and documents for the arbitration, as well as documents relevant to the case from third parties, in accordance with any applicable state or federal law." The court in *Dotson v. Amgen, Inc.* (2010) 181 Cal.App.4th 975, held a provision limiting parties to one deposition as of right with additional depositions available upon request to the arbitrator was not unconscionable. Like *Dotson*, the language here

permits the arbitrator to expand discovery upon request by the parties and allows robust third party discovery, as well as trial subpoena powers.

Lastly, the court agrees Section 14 is not an unlawful fee-shifting provision. Section 14 provides: "To the extent allowed by applicable law and if the claim(s) or counterclaim(s) brought by either party in arbitration allow for imposition of sanctions, the Arbitrator may award either party its reasonable attorneys' fees and costs, including reasonable expenses associated with production of witnesses or proof, upon a finding that the claim or counterclaim was frivolous or brought solely to harass the Employee or the Company." This provision is limited to claims that are "frivolous or brought solely to harass," and is bound by applicable state law. As such, it does not contain an unconscionable term.

Based on the foregoing, the motion to compel arbitration is GRANTED. The representative PAGA claims are stayed pending conclusion of the individual arbitration claim.